▶ GUJARAT

DISTURBING AREAS OF DOUBT

Gujarat's communal ghettoisation gets legal force, as a tweak to a riot-time law from the 1980s makes its clauses permanent and more freely applicable—at all times

By **Jumana Shah**



CONTENTIOUS ZONES Juhapura, one of Ahmedabad's suburbs that saw an influx of Muslims in the 1980s

EUPHEMISM HAS ITS USES: IT CAN help normalise the anomalous. Gujarat's Disturbed Areas Act had its roots in one of the worst chapters in its modern history: the communal riots of 1985-86, after which the Congress government enacted it as a temporary emergency ordinance, applying it first to riot-affected localities in the walled city of Ahmedabad. The intent was to prevent panic sales and stop displaced minorities from being pushed out of their homes and neighbourhoods at distress prices by organised intimidation. The law lived on, gently mutating along the way, and has now been generalised across the state with a new law.

The Gujarat Prohibition of Transfer of Immovable Property and Provision for Protection of Tenants from Eviction from Premises in the Disturbed Areas (Amendment) Bill, 2026—a mouthful, but it retains the original philanthropic intent in its title. Passed on the last day of the budget session by a majority vote, it's dressed up as a protective measure, and replaces the controversy-provoking nomenclature 'Disturbed Areas' with the more anodyne 'Specified Areas'.

A WIDENING AMBIT

The fine print: it deepens and fixes into law religion-based discrimination in property dealings, formally hardening a ghettoised social map. Context: trace how the law evolved, gaining more and more space for its application. In 1991, under the Congress-Chimanbhai Patel coalition, a fresh Act replaced the 1986 ordinance. The year-specific trigger (mid-'80s riots) was dropped. Any area experiencing riots or mob violence for a 'substantial period' could now be notified. On this framework, the Act's remit was later expanded to Vadodara, and gradually to Surat, Bharuch, Godhra, Kapadvanj, Himmatnagar and Viramgam. In 35 years, not a single area has been denotified as no longer disturbed.

In 2020, amendments significantly expanded the collector's powers, inserting phrases such as 'improper clustering', 'polarisation' and 'demographic equilibrium' as grounds for rejecting property transfers between Muslims and non-Muslims. Petitioners in the Gujarat High Court, including a body of Islamic scholars, challenged the language, arguing that phrases like 'improper clustering' effectively codified religious segregation, in direct violation of constitutional guarantees of equality. In 2025, the court upheld the law,